

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY  
MARTINEZ, CA  
DEPARTMENT 10  
JUDICIAL OFFICER: JULIA CAMPINS  
HEARING DATE: 05/07/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule 3.43(2).*)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED**. Dept. 10's email address is: [dept10@contracosta.courts.ca.gov](mailto:dept10@contracosta.courts.ca.gov). Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

**Submission of Orders After Hearing in Department 10**  
**Cases**

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

**Courtroom Clerk's Calendar**

1. 8:31 AM CASE NUMBER: C25-02823  
CASE NAME: TAMARA ZABLOCKI VS. JEARALDIN ALTOBAR  
\*CASE MANAGEMENT CONFERENCE TRAIL MOTION  
FILED BY:  
**\*TENTATIVE RULING:\***

If the tentative ruling goes uncontested, the Court sets a post-arbitration status conference for **Monday, December 21, 2026, at 8:30 a.m. in Department 10**. The Parties are ordered to file a **joint**

**statement with an update on the arbitration at least seven calendar days in advance of the hearing.**

If either Party challenges the tentative ruling on Line 14, a Further Case Management Conference will be held.

**2. 9:00 AM CASE NUMBER: C24-02228**  
**CASE NAME: ZAHRA SADAT HENDI VS. ZBIGNIEW KOSTRZEWSKI**  
**ISSUE CONFERENCE WITH SETTLEMENT MENTOR**  
**FILED BY:**

**\*TENTATIVE RULING:\***

Parties to appear for settlement conference.

**3. 10:00 AM CASE NUMBER: C25-01983**  
**CASE NAME: KURT VOSS VS. GREGORY GOMES**  
**HEARING ON ORDER TO SHOW CAUSE IN RE: CONTEMPT OF PREVIOUS TRO AND PRELIMINARY INJUNCTION**  
**FILED BY:**

**\*TENTATIVE RULING:\***

This matter is before the Court on an Order to Show Cause to Defendant Gregory Gomes regarding alleged violations of the Court's Temporary Restraining Order (dated July 17, 2025) and Preliminary Injunction (dated October 3, 2025). On November 20, 2025, this Court issued an Order Granting Plaintiffs' Ex Parte Application for Issuance of Order to Show Cause re: Contempt. That order set the hearing May 7, 2026 and specifically identified that a written response was due nine court days before the hearing and a reply five days before the hearing.

On February 26, 2026, the Court granted a Petition to Compel Arbitration. The Court received no documents relating to the Order to Show Cause until April 29, 2026, at which point Defendant filed a "Statement Regarding Ex Parte Hearing on Order to Show Cause re Contempt; Order Compelling A[r]bitration and Staying Action." In that filing, counsel for Defendant stated that he believed the instant hearing was vacated as a result of the arbitration order. He stated that, if the hearing is to continue, "justice and due process require that the [hearing] be continued fifteen (15) days to permit Defendant to file a substantive opposition." Defendant implicitly argues that the burden was on Plaintiff to show that the "ex parte proceeding is independent from the arbitration, or that the stay is otherwise inapplicable." That is not so. The Court set a contempt proceeding, and Defendant apparently failed to check the docket to verify the assumption that it would be vacated. As Plaintiff properly identifies, the issue the Court is addressing in this hearing is conduct outside of the arbitration. It is therefore properly within the Court's jurisdiction to address compliance. (*McCluskey v. Henry* (2020) 56 Cal.App.5th 1197, 1206, quoting *LaPrade v. Kidder Peabody & Co.* (D.C. Cir. 1998) 330 U.S. App.D.C. 386 ("The procedural predicate for the trial court's award of section 128.7 sanctions was not conduct that occurred in the arbitration proceeding. . . . Therefore, the trial court's 'jurisdiction' to entertain defendants' motion for sanctions, like its jurisdiction to entertain McCluskey's amended motion to lift the stay, 'derived from the original ... suit, which was only stayed

(*not dismissed*) pending the results of the arbitration.”).) Courts generally have jurisdiction to enforce their own orders and this case is no different.

Defendant gives no justification for why “justice and due process” require additional time, especially as Defendant apparently was capable of realizing this matter *was* still on calendar in advance of the hearing, but chose to ignore the Court’s deadline and file a belated brief statement.

The only evidence before this Court is that Gomes violated this Court’s orders. The Court will therefore impose sanctions in the amount of \$1,000 pursuant to Code of Civil Procedure section 1218. Plaintiffs may make further request for reasonable attorneys’ fees related to this contempt proceeding by motion.

### Law & Motion

**4. 9:00 AM CASE NUMBER: C22-02652**  
**CASE NAME: HONAKER VS. CHP OFFICER DONNIE THOMAS**  
**HEARING ON SUMMARY MOTION JUDGMENT**  
**FILED BY: CHP OFFICER DONNIE THOMAS**

**\*TENTATIVE RULING:\***

Defendants State of California acting by and through the California Highway Patrol (“State”) and Officer Donnie Thomas (“Officer Thomas”) move for summary judgment or, in the alternative, adjudication. The motion for summary judgment is **granted**, as discussed below. Defendants shall prepare an appropriate form of judgment, separate from any order on this motion, and circulate for approval as to form.

**I. Background**

On December 13, 2021, plaintiff’s vehicle was rear ended by Renee Thomas, the spouse of Officer Thomas. Ms. Thomas called her husband, but told plaintiff she had summoned the police. Officer Thomas arrived on scene and collected plaintiff’s identification and insurance information, asking plaintiff questions about the incident, but refusing to make a report. He gave plaintiff a false name when she requested his name and badge number. Through a confusing series of phone calls to the Brentwood Police Department and Officer Thomas (through CHP dispatch), a police officer eventually arrived on scene and took an accident report. Officer Thomas told plaintiff he could not because it was a “conflict of interest.” Plaintiff made a civilian complaint against Officer Thomas on December 14, 2021 based on her contention that she feared for her safety during the interaction with Officer Thomas.

On December 13, 2022, plaintiff filed the present action against both Officer Thomas and the State, wherein she seeks recovery for (1) Unreasonable Seizure; (2) Unreasonable Search; (3) False Imprisonment; and (4) Intentional Infliction of Emotional Distress. (A demurrer was sustained to the fifth “negligence” cause of action.) (Second Amended Complaint, filed on 10/19/23; see also Minute Order dated 3/28/24.)

Just less than two years after the collision, on December 8, 2023, plaintiff filed a complaint for damages against Ms. Thomas and Officer Thomas for personal injury and property damage arising from the motor vehicle accident. Approximately one year ago, on April 17, 2025, plaintiff settled that

complaint by accepting a monetary settlement in exchange for a release of all claims. (Separate Statement of Undisputed Material Facts in Support of Motion, hereinafter "SSUMF," Fact. No. 3, and plaintiff's response.)

At the time of settlement, plaintiff was represented by counsel Justin L. Ward, the same attorney who had filed the complaint on her behalf. (SSUMF, Fact. No. 4, and plaintiff's response; see also Complaint filed 12/8/23.)

The settlement agreement contained the following text:

The Claimant, Marnique Honaker, for the sole consideration of the sum of Twenty-Six Thousand Dollars (\$26,000.00), hereby releases and forever discharges Donnie Thomas and Renee Thomas (hereinafter the "Released Party") and the Released Party's insurers, (Liberty Mutual Fire Insurance Company) (hereinafter called the "Company"), their heirs, executors, administrators, successors, agents, servants, employees and assigns, and all of their past and present related subsidiaries, parents, members, managers, affiliated corporations, and their agents, attorneys, dealers, employees, officers, members, directors, managers, governing body members, stockholders, shareholders, partners (both general and limited), sureties, successors, assigns, predecessors, servants, representatives; and all insurers and reinsurers of the persons, firms, property owners or entities in this definition and their agents, employees, attorneys, and representatives, from any and all claims for loss, damages, costs, contribution, indemnification, or any other thing whatsoever on account of, or in any way growing out of, all personal injuries, death, property damage and any other type of damage of any kind, whether now known or unknown, arising out of an accident or occurrence on Monday, December 13, 2021, at or near Brentwood, California ("the accident").

[...]

The Claimant acknowledges that this Release and Hold Harmless and Indemnification Agreement extends to all claims of any kind which the Claimant had or may have had against the parties released hereby, and that any party released hereby can raise this Release and Hold Harmless and Indemnification Agreement as a complete defense to any claim or suit by or on behalf of the Claimant.

[...]

All rights given by Section 1542 of the Civil Code of California, which is quoted below, are waived by the undersigned."

CA Civil Code section 1542:

A general release does not extend to claims that the creditor or releasing party does not know or suspect to exist in his or her favor at the time of executing the release and that, if known by him or her, would have materially affected his or her settlement with the debtor or released party."

(SSUMF, Fact. Nos. 5-7, and plaintiff's responses.)

When she signed this waiver, plaintiff was aware that she had another lawsuit pending against Officer Thomas arising from the same incident. (SSUMF, Fact. No. 8, and plaintiff's response.)

Defendants moved for summary judgment or summary adjudication in the alternative. The hearing was originally scheduled for April 23, 2026, but was continued to May 7, 2026 on an ex parte application by plaintiff. (Order filed 4/13/26.)

## **II. Motion and Opposition**

Defendants argue that the settlement agreement is a complete defense to this action. Alternatively, defendants seek summary adjudication as to each cause of action based on the inability of plaintiff to show an essential element of each claim.

In support of the motion, defendants provide a declaration from counsel which attaches various litigation documents including plaintiff's responses to requests for admission, other documents provided in discovery, a search log to indicate no search was performed, and the deposition transcript of plaintiff. As required on this sort of motion, defendants provide approximately 50 facts they contend are "undisputed" and "material" in their SSUMF.

Plaintiff opposes the motion, arguing defendants have not shown the release's scope encompasses her claims related to post-collision officer misconduct. Plaintiff also argues the defendants fail to show her claims lack merit, responding to the SSUMF and identifying multiple facts as "disputed." In support of her "disputes" related to the release here, she cites her own declaration concerning lack of any intent to release all claims.

## **III. Evidentiary Matters**

Defendants seek judicial notice of plaintiff's Complaint filed on December 8, 2023 in Case Number C23-03107. The request is unopposed and is **granted**.

With the reply, defendants raise objections to plaintiff's evidence in support of the Opposition. The objections are **sustained**.

## **IV. Standard**

To be entitled to judgment as a matter of law, a defendant (or cross-defendant) must show by admissible evidence that the action has no merit. (Code Civ. Proc., § 437c, subd. (a).) A defendant can meet this burden by demonstrating a complete defense to plaintiff's action. (Code of Civ. Proc., § 437c, subd. (o).) Once the moving defendant has met that burden, the burden shifts to the plaintiff to show via specific facts that a triable issue of material fact exists as to the defense. (Code of Civil Procedure § 437c, subd. (p)(2).) Although the burden of production shifts, the moving party always bears the burden of persuasion. (*Aguilar v. Atlantic Richfield* (2001) 25 Cal.4th 826, 850.)

A motion for summary adjudication may be made by itself or as an alternative to a motion for summary judgment and shall proceed in all procedural respects as a motion for summary judgment. (Code Civ. Proc., § 437c (f)(2).)

## **V. Discussion**

### **A. Defendants Meet Their Initial Burden**

Defendants' motion posits that the settlement agreement is a complete defense to this action. Plaintiff argues the defendants do not meet their initial burden because there are factual questions as to what was intended by the terms of that document.

"A settlement agreement is a contract, and the legal principles which apply to contracts generally apply to settlement contracts." (*Weddington Productions, Inc. v. Flick* (1998) 60 Cal. App. 4th 793, 810-11, citation omitted.) "[T]he validity of the settlement agreement is to be judged by the same legal principles applicable to contracts generally." (*Timney v. Lin* (2003) 106 Cal. App. 4th 1121, 1128.) "When a dispute arises over the meaning of contract language, the first question to be decided is whether the language is 'reasonably susceptible' to the interpretation urged by the party. If not, the case is over. If the court decides the language is reasonably susceptible to the interpretation urged, the court moves to the second question: what did the parties intend the language to mean?" (*People ex rel. Lockyer v. R.J. Reynolds Tobacco Co.* (2003) 107 Cal.App.4th 516, 524, hereinafter "*Lockyer*".)

"A contract must be so interpreted as to give effect to the mutual intention of the parties as it existed at the time of contracting, so far as the same is ascertainable and lawful." (*Lockyer*, supra, 107 Cal.App.4th at 525, citing Civ. Code, § 1636.) The language of a contract determines the intention of the parties and thus governs the interpretation of the contract, if the language is clear and explicit, and does not involve an absurdity. (*Lockyer*, supra, 107 Cal.App.4th at 525, citing Civ. Code, §§ 1638-1639; see also 1 Witkin Summary of Cal. Law (11th ed. 2017) Contracts, § 116 ["The outward manifestation or expression of consent is controlling. In other words, mutual consent is gathered from the reasonable meaning of the words and acts of the parties, and not from their unexpressed intentions or understandings"].)

There also can be no real dispute that the contract language was clear and unambiguous with respect to the scope of the release, which stated plaintiff "hereby releases and forever discharges Donnie Thomas [...] from any and all claims [...] whether now known or unknown, arising out of an accident or occurrence on Monday, December 13, 2021, at or near Brentwood, California [...]." The release noted that it "extends to all claims of any kind" and that Officer Thomas was entitled to use the release "as a complete defense to any claim or suit by or on behalf of the Claimant." The release further quoted Civil Code section 1542 in stating that even unknown claims were being waived.

Plaintiff's offered interpretation—that the "all claims" language does not mean "all claims"—would be an absurdity. The authorities she cites are readily distinguished. Plaintiff cites *Claxton v. Waters* (2004) 34 Cal.4th 367, a case that addressed preprinted *mandatory* forms used in settlement of worker's compensation claims. (*Id.* at 371 [noting settlement form was mandatory].) Plaintiff's pin citation in the opposition brief refers to the dissenting opinion (at page 383). The majority's analysis in that case ended a judicially created exception to the parol evidence rule in workers' compensation settlements. (*Id.* at 377.) The authority is specific to the worker's compensation context.

Plaintiff also cites a case relied on in defendants' moving papers, *Jefferson v. Department of Youth Authority* (2002) 28 Cal.4th 299, 306-307 for the rule that Civil Code section 1542 requires a factual showing that the parties intended to settle unknown claims. This case is entirely unhelpful to plaintiff here because in *Jefferson*, the factual showing *was* made since parties there had "added a typed attachment to their compromise and release, quoting section 1542 and also stating, 'this release will apply to all unknown and unanticipated injuries . . . and all rights under Section 1542 . . . are hereby expressly waived.'" (*Id.* at 307.)

The California Supreme Court held that, though a separate FEHA action was not for "unknown" or "unanticipated" injuries, the addition of section 1542 language established unambiguously that the parties intended the release to cover all possible civil claims. The court noted plaintiff did not "explain why a generic attachment should carry less weight in this context than a custom-made one. For our purposes, the critical points are that the parties incorporated the attachment into their compromise and release agreement and that it clearly establishes their intent

to include civil claims within the scope of their settlement.” (*Ibid.*)

Plaintiff here represented that she knew the scope of the release and is bound to that representation. She acknowledged that she read the agreement and “fully underst[ood]” its “intent and purpose.” Plaintiff further represented that she had been given the opportunity to consult with counsel (the evidence reflects she was, in fact, represented by counsel) and that she was presented with “an adequate opportunity” to “consider the agreement and its consequences.”

“The general rule is that when a person with the capacity of reading and understanding an instrument signs it, [s]he is, in the absence of fraud and imposition, bound by its contents, and is estopped from saying that its provisions are contrary to his intentions or understanding . . . .” (*Edwards v. Comstock Insurance Co.* (1988) 205 Cal.App.3d 1164, 1167.) In other words, “one party is not permitted to escape from its obligation by showing that he did not intend to do what his words bound him to do.” (*Crow v. P.E.G. Construction Co.* (1957) 156 Cal.App.2d 271, 278.)

Because vicarious liability is the only theory alleged against the State, it too is entitled to rely on the settlement agreement as a complete defense. Defendants have met their initial burden to show entitlement to judgment as a matter of law.

**B. Plaintiff’s Evidence Does Not Raise Material Factual Disputes**

Many of plaintiff’s purported disputes regarding the facts are not true disputes. For example, plaintiff asserts a dispute to Facts 16 and 17 in the basis that Officer Thomas’ self-serving declaration is the only evidence for when and why he arrived at the scene, but also admits she has no personal knowledge about this fact or whether Ms. Thomas called him. Other purported disputes are only to the “implications” or “characterizations” plaintiff contends are raised (e.g., Fact Nos. 18-19, 22-23), or to the “completeness” of the facts to which she seeks to add context (e.g. Fact No. 21). In any event, none of the purported disputes are material to the grounds for summary judgment here.

A material fact is one that might affect the resolution of the claim, affirmative defense, counterclaim, or discrete issue raised in the summary judgment motion under the applicable substantive law. (Cal Rules Ct, Rule 3.1350(a)(2).) Facts that do not affect the outcome are not material. (*Knapp v. Doherty* (2004) 123 Cal.App.4th 76, 89.)

Summary judgment is warranted here and the Court need not proceed to analyze the issues presented for summary adjudication.

**5. 9:00 AM CASE NUMBER: C23-02721**  
**CASE NAME: MATIAS ESCOBAR VS. 1630 CLAYTON & 1650/1730 PINE STREET ASSOCIATES, LLC**  
**\*HEARING ON MINOR'S COMPROMISE RE: MAYORI RIVAS**  
**FILED BY: ESCOBAR , MATIAS RIVAS**  
**\*TENTATIVE RULING:\***

**Summary**

Petitioner and Guardian Ad Litem Matias Rivas Escobar filed on December 17, 2025 a Petition for Approval of Compromise of Minor Mayori Rivas’s (“Minor”) Claim Against 1630 Clayton & 1650/1730 Pine Street Associates LLC (“Petition”). For the reasons stated below, the Court **grants** the Petition.

### **Background**

On October 26, 2023, Petitioner on his own behalf with co-Plaintiffs Ana Ramirez and minors Jefersson Rivas, Christofher Rivas, and Mayori Rivas filed a complaint against Defendant 1630 Clayton & 1650/1730 Pine Street Associates LLC for breach of contract, breach of implied warrant of habitability, nuisance, negligence, and intentional infliction of emotional distress. Minor suffered no medical injuries and sought no treatment.

At this time, Defendant has offered \$97,500.00 to resolve all claims. The majority of the resolution is to go to the parents, Matias Rivas Escobar and Ana Ramirez, given the nature of the varied damages. Of this total resolution, \$2,500 is allocated to Minor. Of this \$2,500, the only deduction is for attorneys' fees in the amount of \$625.00, or 25%. Minor therefore is to receive \$1,875.00.

Given the amount of the resolution, Petitioner is seeking the award to be paid to him, without bond, pursuant to Probate Code sections 3401-3502. The amount is clearly within the Code, although the Court has no representations that Petitioner is able to make the verification to the payor pursuant to Probate Code section 3401(c)(2). If Petitioner is unable to make such verified attestation, he will need to return to Court to seek alternate payment.

### **Ruling**

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is granted. The Court will execute the Proposed Order Approving Compromise of Minor's Claim lodged on December 17, 2025.

**6. 9:00 AM CASE NUMBER: C23-02721**  
**CASE NAME: MATIAS ESCOBAR VS. 1630 CLAYTON & 1650/1730 PINE STREET ASSOCIATES, LLC**  
**\*HEARING ON MINOR'S COMPROMISE RE: CHRISTOFHER RIVAS**  
**FILED BY: ESCOBAR , MATIAS RIVAS**  
**\*TENTATIVE RULING:\***

### **Summary**

Petitioner and Guardian Ad Litem Matias Rivas Escobar filed on December 17, 2025 a Petition for Approval of Compromise of Minor Christofher Rivas's ("Minor") Claim Against 1630 Clayton & 1650/1730 Pine Street Associates LLC ("Petition"). For the reasons stated below, the Court **grants** the Petition.

### **Background**

On October 26, 2023, Petitioner on his own behalf with co-Plaintiffs Ana Ramirez and minors Jefersson Rivas, Christofher Rivas, and Mayori Rivas filed a complaint against Defendant 1630 Clayton & 1650/1730 Pine Street Associates LLC for breach of contract, breach of implied warrant of habitability, nuisance, negligence, and intentional infliction of emotional distress. Minor suffered no medical injuries and sought no treatment.



At this time, Defendant has offered \$97,500.00 to resolve all claims. The majority of the resolution is to go to the parents, Matias Rivas Escobar and Ana Ramirez, given the nature of the varied damages. Of this total resolution, \$2,500 is allocated to Minor. Of his \$2,500, the only deduction is for attorneys' fees in the amount of \$625.00, or 25%. Minor therefore is to receive \$1,875.00.

Given the amount of the resolution, Petitioner is seeking the award to be paid to him, without bond, pursuant to Probate Code sections 3401-3502. The amount is clearly within the Code, although the Court has no representations that Petitioner is able to make the verification to the payor pursuant to Probate Code section 3401(c)(2). If Petitioner is unable to make such verified attestation, he will need to return to Court to seek alternate payment.

### **Ruling**

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is granted. The Court will execute the Proposed Order Approving Compromise of Minor's Claim lodged on December 17, 2025.

**7. 9:00 AM CASE NUMBER: C23-02721**  
**CASE NAME: MATIAS ESCOBAR VS. 1630 CLAYTON & 1650/1730 PINE STREET ASSOCIATES, LLC**  
**\*HEARING ON MINOR'S COMPROMISE RE: JEFERSSON RIVAS**  
**FILED BY: ESCOBAR , MATIAS RIVAS**  
**\*TENTATIVE RULING:\***

### **Summary**

Petitioner and Guardian Ad Litem Matias Rivas Escobar filed on December 17, 2025 a Petition for Approval of Compromise of Minor Jefersson Rivas's ("Minor") Claim Against 1630 Clayton & 1650/1730 Pine Street Associates LLC ("Petition"). For the reasons stated below, the Court **grants** the Petition.

### **Background**

On October 26, 2023, Petitioner on his own behalf with co-Plaintiffs Ana Ramirez and minors Jefersson Rivas, Christofher Rivas, and Mayori Rivas filed a complaint against Defendant 1630 Clayton & 1650/1730 Pine Street Associates LLC for breach of contract, breach of implied warrant of habitability, nuisance, negligence, and intentional infliction of emotional distress. Minor suffered no medical injuries and sought no treatment.

At this time, Defendant has offered \$97,500.00 to resolve all claims. The majority of the resolution is to go to the parents, Matias Rivas Escobar and Ana Ramirez, given the nature of the varied damages. Of this total resolution, \$2,500 is allocated to Minor. Of his \$2,500, the only deduction is for attorneys' fees in the amount of \$625.00, or 25%. Minor therefore is to receive \$1,875.00.

Given the amount of the resolution, Petitioner is seeking the award to be paid to him, without bond, pursuant to Probate Code sections 3401-3502. The amount is clearly within the Code, although the Court has no representations that Petitioner is able to make the verification to the payor pursuant to

Probate Code section 3401(c)(2). If Petitioner is unable to make such verified attestation, he will need to return to Court to seek alternate payment.

### **Ruling**

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is granted. The Court will execute the Proposed Order Approving Compromise of Minor's Claim lodged on December 17, 2025.

**8. 9:00 AM CASE NUMBER: C24-01469**

**CASE NAME: TIN PHAM VS. ARCK RAMIREZ, JR.**

**\*HEARING ON MINOR'S COMPROMISE**

**FILED BY: PHAM, TIN HUU**

**\*TENTATIVE RULING:\***

### **Summary**

Petitioner and Guardian Ad Litem Tin Huu Pham filed on November 13, 2025 a Petition for Approval of Compromise of Minor Minhquan Le Pham's ("Minor") Claim Against Arck Ramirez Jr. ("Petition"). For the reasons stated below, the Court **grants** the Petition

### **Background**

On October 1, 2022, Arck Ramirez Jr., while driving under the influence of alcohol, struck and killed Minor's mother Chung Thuy Thi Le. Petitioner (the decedent's husband) and minor, along with two other of decedant's children (both of whom are apparently no longer minors), sued for wrongful death. Minor Le Pham was not present at the collision. Petitioner avers that Minor will never recover completely from the death of his mother.

At this time, the uninsured motorist policy for the decedent has offered \$100,000. The resolution has the four Plaintiffs evenly distributing that amount, such that Minor would receive \$25,000. The sole deduction is for \$5,000 for attorneys' fees, representing 20%. This amount would be placed into a blocked account for the benefit of the Minor

### **Ruling**

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is granted. The Court will execute the Proposed Order Approving Compromise of Minor's Claim and the Proposed Order to Deposit Funds into a Blocked Account lodged on November 13, 2025.

**9. 9:00 AM CASE NUMBER: C24-02090**

**CASE NAME: LEAH FREEMAN VS. DAVID HUNTER**

**\*HEARING ON MOTION IN RE: MANDATORY INJUNCTION**

**FILED BY: HUNTER, DAVID**

**\*TENTATIVE RULING:\***

Defendants and Cross-Claimants filed a Motion for Mandatory Injunction on November 19, 2025. Since then, in a Case Management Conference Statement, Defendants have represented that “All Cross-Defendants have been defaulted and Plaintiff has indicated she will dismiss her case and will then be defaulted from the Cross-Complaint. Cross-Defendants are filing a Request for Court Judgment against the Defaulted Defendants.” The Court received no additional filings relating to this request. Given the procedural posture and recent representations, the Court believes it is highly likely the Mandatory Injunction is unnecessary and so will **deny** it as moot.

**10. 9:00 AM CASE NUMBER: C24-02882**  
**CASE NAME: HEATHER ABALOS VS. EDWARD HAMILTON**  
**\*HEARING ON MOTION IN RE: LEAVE TO FILE 1ST AMENDED COMPLAINT**  
**FILED BY: ABALOS, HEATHER**

**\*TENTATIVE RULING:\***

Before the Court is a motion for leave to file a second amended complaint (“Motion”, improperly designated as a motion for leave to file a first amended complaint), filed by plaintiff Heather Abalos (Plaintiff”). Plaintiff seeks to add a claim asserting unlawful noncompete agreements and seeks sanctions from the defendants for not stipulating to the filing of an amended complaint.

For the reasons discussed below, the Court GRANTS Plaintiff’s motion for leave to file a second amended complaint and DENIES the request for sanctions.

**Background**

On October 25, 2024, Plaintiff, a former employee of McCampbell Analytical, Inc., filed a putative class action against McCampbell Analytical, Inc. and Edward Hamilton (“Defendants”). The lawsuit asserted claims for: (1) failure to pay minimum wages; (2) failure to pay overtime wages; (3) failure to provide meal periods; (4) failure to provide rest periods; (5) failure to reimburse necessary business expenses; (7) illegal waiver of wages owed; and (8) violation of California Business & Professions Code §§ 17200, et seq. On February 3, 2025, Plaintiff filed a first amended complaint, which added a Private Attorney’s General Act (“PAGA”) claim, and sought penalties related to that.

With respect to the instant Motion, Plaintiff now seeks to add a claim relating to an alleged improper non-compete agreement. Plaintiff asserts that additional facts were discovered after further investigation and that they immediately sent an email to Defendants asking to stipulate to the filing of an additional amended complaint. Defendants were unwilling to so stipulate, thus Plaintiff filed the instant motion for leave to file a second amended complaint.

**Legal Standard for Motion for Leave to File an Amended Pleading**

Code of Civil Procedure section 473, subdivision (a)(1), provides the Court discretion to permit a party to amend its pleadings. There is “a policy of great liberality in permitting amendments to the complaint at any stage of the proceedings, up to and including trial [citations]...” (*Magpali v. Farmers Group* (1996) 48 Cal.App.4th 471, 487.) Leave to amend can be denied where there is “inexcusable

delay and probable prejudice to the opposing party’... [Citation.]” (*Ibid.*) “[I]t is a rare case in which ‘a court will be justified in refusing a party leave to amend his pleadings so that he may properly present his case.’” (*Morgan v. Superior Court of Los Angeles County* (1959) 172 Cal.App.2d 527, 530 quoting *Guidery v. Green* (1892) 95 Cal. 630, 633.)

“Generally, leave to amend must be liberally granted [Citation], provided there is no statute of limitations concern, nor any prejudice to the opposing party, such as delay in trial, loss of critical evidence, or added costs of preparation.” (*Solit v. Tokai Bank* (1999) 68 Cal.App.4th 1435, 1448.)

A party opposing amendment must demonstrate that permitting the amendment will cause it to suffer prejudice. (*Rickley v. Goodfriend* (2013) 212 Cal.App.4th 1136, 1159; see also *Mesler v. Bragg Mgmt. Co.* (1985) 39 Cal.3d 290, 296-297.) “Motions to amend are appropriately granted as late as the first day of trial ... or even during trial ... if the defendant is alerted to the charges by the factual allegations, no matter how framed ... and the defendant will not be prejudiced.” (*Rickley*, 212 Cal.App.4th at 1159 quoting *Honig v. Financial Corp. of America* (1992) 6 Cal.App.4th 960, 965.)

## **Discussion**

### **Procedural Requirements**

A motion to amend a pleading must include a copy of the proposed amended pleading, serially numbered to differentiate it from previous pleadings, and it must state: (1) what if any allegations are proposed to be deleted; (2) what if any allegations are proposed to be added; and (3) where, by page, paragraph, and line number the allegations to be added or deleted are located. (Cal. Rules of Court, Rule 3.1324(a).) A motion to amend a pleading must include a separate declaration that specifies (1) the effect of the amendment, (2) why the amendment is necessary and proper, (3) when the facts giving rise to the amended allegations were discovered, and (4) why the request to amend was not made earlier. (Cal. Rules of Court, Rule 3.1324(b).)

Here, Plaintiff has included a redlined copy of the proposed second amended complaint (misabeled as the first amended complaint), which shows what they propose adding and deleting and where. (Notice of Errata re: Declaration of Navid Barahmand, Exh. A.) Plaintiff has also included a declaration that substantially complies with the requirement to specify the effect of the amendment (Barahmand Decl. ISO Motion, at ¶ 3), why the amendment is necessary and proper (*id.*, at ¶¶ 3-4), when the facts giving rise to the amended allegations were discovered (*id.*, at ¶ 4), and why the request was not made earlier (*id.*, at ¶¶ 3-4).

The Court notes that the redline provided by Plaintiff shows the changes between the original complaint and the proposed second amended complaint. Notably, the first amended complaint already has a PAGA claim and this is not reflected by the redline, which shows the differences between the original complaint and the proposed second amended complaint. However, Defendants state that “the PAGA claim” in the proposed second amended complaint does not have “any meaningful change from the version already alleged . . . in the First Amended Complaint filed on February 3, 2025,” so the Court will disregard this transgression.

### **Substantive Analysis**

Plaintiff asserts they discovered additional information on or around November 2025, that showed the ability to assert a new claim for illegal noncompete agreements. (Motion, p. 2.) The additional information was a non-compete agreement produced by Defendants in discovery, Bates Number MA0048. (Barahmand Decl. ISO Reply, ¶ 2, Exh. A.) Plaintiff asserts that they immediately reached out to counsel for Defendants in an attempt to stipulate to the filing of an amended complaint, but Defendants rejected the request. (Motion, p. 2; Barahmand Decl. ISO Motion, ¶ 4, Exh. C.)

Plaintiff argues that in light of the policy favoring amendments at any stage of a proceeding, the fact that they sought to file an amended complaint as soon as the additional information was discovered, and that there will be no prejudice to Defendants, the Court should grant the Motion for Leave to Amend. (Motion, pp. 3-5.) Plaintiff also seeks monetary sanctions by analogizing the situation here to *Ellis v. Roshei Corp.* (1983) 143 Cal.App.3d 642, 649.

Defendants oppose Plaintiff's motion for leave to amend by arguing that inexcusable delay and probable prejudice warrant denial of Plaintiff's Motion. (Opposition, p. 3.) Defendants cite *Estate of Murphy* (1978) 82 Cal. App. 3d 304, 311, for the proposition that inexcusable delay and probable prejudice can support denial of a motion for leave to amend. (*Ibid.*) Defendants argue that Plaintiff has not explained why they are adding claims at this late stage and has improperly failed to provide the factual and legal basis for the amendment. (*Id.*, at pp. 4-5.) Defendants further argue that the proposed amended complaint lacks sufficient detail, that the inexcusable delay and lack of diligence support denial, and that they will suffer prejudice from the new field of inquiry and that their ability to prepare an adequate defense will be compromised. (*Id.*, pp. 6-8.) Defendants further argue that there is no basis for them to be sanctioned. (*Id.*, pp. 8-12.)

On reply, Plaintiff identifies the document produced by Defendants that supports the request for leave to amend to add a claim for an improper non-compete agreement and asserts that there will be no prejudice here as there is still no trial date in this matter. (Reply, p. 1.)

With respect to Defendants' argument that Plaintiff has not explained why they are adding claims at this late stage and has improperly failed to provide the factual and legal basis for the amendment, the Court disagrees. Plaintiff learned of the non-compete agreement around the time they asked to stipulate to an amended pleading around November 2025. (Barahmond Decl. ISO Motion, ¶ 4, Exh. C.) The factual basis is the document produced by Defendants Bates stamped MA0048. (Barahmand Decl. ISO Reply, ¶ 2, Exh. A.) The legal basis is identified on the proposed amended complaint, California Business & Professions Code §§ 16600, 16600.1, 16600.5, and Labor Code section 432.5. (Notice of Errata re Barahmand Decl. ISO Motion, Exh. A.)

With respect to Defendants' argument that the proposed amended complaint lacks sufficient detail, courts generally do not consider the validity of proposed amendments to a pleading. (See *Kittredge Sports Co. v. Sup. Ct.* (1989) 213 Cal.App.3d 1045, 1048; *Atkinson v. Elk Corp.* (2006) 109 Cal.App.4th 739, 760 ["the better course of action would have been to allow ... [plaintiff] to amend the complaint and then let the parties test its legal sufficiency in other appropriate proceedings."].) The Court will not deny the Motion on this basis.

With respect to the argument that Plaintiff inexcusably delayed, the Court finds this argument unavailing as Plaintiff sought to file an amended complaint as soon as they learned of the non-compete agreement, which was discovered after a document production of Defendants. (See

Barahmand Decl. ISO Motion, ¶ 4, Exh. C; Barahmand Decl. ISO Reply, ¶ 2, Exh. A.) Even if there was unreasonable delay, “it is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment.” (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048.)

As to Defendants’ claim of prejudice, the Court notes that despite Defendants stating in the statement of facts that Plaintiff has already alleged a PAGA claim in the first amended complaint, the arguments in the Opposition regarding prejudice do not appear to acknowledge this. (Opposition, pp. 1, 7-9.) The Court finds that one additional cause of action relating to a non-compete agreement is not such a large endeavor so as to deny Defendants an opportunity to adequately prepare a defense, especially in light of there being no trial date set in this matter.

“[D]iscretion should be exercised liberally in favor of amendments, for judicial policy favors resolution of all disputed matters in the same lawsuit.” (*Kittredge Sports Co. v. Sup. Ct.* (1989) 213 Cal. App. 3d 1045, 1047.) “The trial court has discretion to permit or deny the amendment of the complaint, but instances justifying the court’s denial of leave to amend are rare.” (*Armenta ex rel. City of Burbank v. Mueller Co.* (2006) 142 Cal.App.4th 636, 642.) The Court finds that this is not one of those rare instances where denial of leave to amend is justified.

Regarding Plaintiff’s request for sanctions, the Court denies this request as the *Ellis v. Roshei Corp.* (1983) 143 Cal.App.3d 642, cited by Plaintiff, is distinguishable from the instant matter before the Court. In *Ellis*, the sanctioned party wanted certain information to be included in the complaint, and the other side offered to include that information if the sanctioned party would stipulate to the filing of an amended complaint. The sanctioned party refused to so stipulate and filed a demurrer. Here, Defendants requested the factual basis for the new cause of action when considering to stipulate and it appears that Plaintiff did not provide that basis until they filed the Reply and Declaration in Support of the Reply. Further, this is not an instance of a party asking for something, being offered it, and then rejecting the offer and filing a motion for what was offered, as was the case in *Ellis*.

### **Ruling**

Plaintiff’s motion for leave to amend is GRANTED, but the request for sanctions is DENIED. The Court orders Plaintiff to file their proposed second amended complaint, properly captioned, within 10 calendar days of notice of entry of this order. Defendants’ response thereto shall be filed per code.

**11. 9:00 AM CASE NUMBER: C25-02371**  
**CASE NAME: BETTY KARRIS VS. JILL CHERNE**  
**\*HEARING ON MOTION IN RE: QUASH SUBPOENAS**  
**FILED BY: KARRIS, BETTY JEAN**  
**\*TENTATIVE RULING:\***

Plaintiff Betty Karris brings this Motion to Quash subpoenas by Harry Karris, who was initially appointed by the Court to be Plaintiff Betty Karris’s Guardian Ad Litem, although Defendant Jill Cherne has sought to set aside that appointment. The subpoenas are seeking information relating to Plaintiff’s financial information (through banks) and attorney-client information (through attorneys and law firms). The Court previously indicated that Harry Karris should step down and be replaced by

a neutral guardian ad litem. His authority “continue[d] only to carry out the acts necessary to comply with this order.” He was invited to move to intervene.

Since that December 11, 2025 order, the parties have put before the Court ongoing disputes, but have not managed to comply with the Court’s order to select another Guardian Ad Litem. Instead, they have dug their heels in, with one side suggesting some GALs, the other side opposing, and neither side wavering to find alternatives. At this time, as the Court previously indicated, it is not certain that Betty Karris requires a GAL.

The subpoenas at issue were served in Plaintiff Betty Karris’s name, by a GAL who should no longer be the GAL except to effectuate the prior order. They are therefore of tenuous validity. Given the nature of the subpoenas and the procedural posture of this case, the Motion to Quash as to the attorney subpoenas is **granted**. This is not a ruling on the merits of the subpoenas, but given the sensitive nature of the information they seek and that Harry Karris has been informed by the Court that he has no ongoing authority as GAL except in a limited capacity not applicable here, they cannot stand. Although the medical records are similarly situated, when they issued, Harry Karris *was* the GAL and they relate to information necessary to move this case forward; namely Dr. Nancy Hoffman requires them to proceed with her evaluation. The Motion to Quash medical records is therefore **denied** with the following caveat: The medical records shall left sealed until they are in the hands of Dr. Nancy Hoffman. Only she (and any necessary assistants) may review them. She may make copies for her own use, subject to destruction of those copies after her work on this matter is concluded. The originals will be resealed and shall remain sealed until the Court rules on the issues relating to the need for a GAL and a new GAL is appointed. The Court truly hopes the parties can agree on who is trustworthy enough to maintain sealed files in their office, but if the parties cannot agree, they can be housed with the Court.

**12. 9:00 AM CASE NUMBER: C25-02680**  
**CASE NAME: NATHAN STEINLE VS. PREMDIP DHOOT**  
**\*HEARING ON MOTION IN RE: RELATE/COORDINATE CASES**  
**FILED BY: STEINLE, NATHAN**  
**\*TENTATIVE RULING:\***

Plaintiff Nathan Steinle seeks to coordinate three cases, all arising out of the same series of events, all involve the same defendants (with one minor exception), and all address similar questions of law. The Court received no timely opposition.

The instant case is C25-02680, Nathan Steinle v. Premdip Dhoot. It is the earliest-filed case. The Court will therefore coordinate with this case the two related cases: 98 Colima, LLC v. HD 2670 Walnut Blvd Member, LLC, et al., C25-02681 and Ascent Investments Company, LLC v. HD 2670 Walnut Blvd Member, LLC, et al., C25-02683. All future hearings in these two matters are vacated and reset to align with hearings in C25-02680.

**13. 9:00 AM CASE NUMBER: C25-02730**

**CASE NAME: TADEUSZ WYRZYKOWSKI VS. CSW CONSTRUCTION GROUP**

**\*HEARING ON MOTION IN RE: TO SUSTAIN DEFAULT**

**FILED BY: WYRZYKOWSKI, TADEUSZ**

**\*TENTATIVE RULING:\***

Before the Court is Plaintiff's Motion to Sustain Default.

Plaintiff's Motion is **denied** as set forth below.

### **Procedural History**

Plaintiff filed his Complaint on September 29, 2025. The operative First Amended Complaint (FAC) was filed on October 20, 2025. On December 1, 2025, Defendant filed a Declaration of Demurring Party in Support of Automatic Extension. On December 8, 2025, Plaintiff filed a Proof of Service of Summons that asserts that the summons, complaint, and FAC were personally served on Defendant on October 18, 2025.

On January 20, 2026, Plaintiff filed a Request for Entry of Default on the Complaint filed on September 29, 2025. The Default was entered on that same date. On January 23, 2026, Defendant filed a motion to set aside the default. Plaintiff filed the instant motion to 'sustain default' on January 26.

Defendant's motion to set aside was set for hearing on April 30. The Court issued its tentative ruling granting the motion on April 29. As Plaintiff did not contest the tentative in accordance with Local Rule 3.43, the tentative became the order of the Court – granting the motion to set aside the default.

### **Initial Issues**

Every motion must include a notice of motion along with the memorandum in support. (Cal. R. Ct. 3.1112 (a).) The notice must include the date, time, and location of any scheduled hearing along with other information, including the basis for the motion. (Cal. R. Ct. 3.1110.) "A basic tenant of motion practice is that the notice of motion must state the grounds for the order being sought [cites], and the court generally may consider only the grounds stated in the notice of motion." (*Kinda v. Carpenter* (2016) 247 Cal.App.4th 1268, 1277.) "The purpose of the notice requirement 'is to cause the moving party to 'sufficiently define the issues for the information and attention of the adverse party and the court.'" (*Ibid.*)

The motion must also be filed and served upon all parties at least 16 court days prior to the hearing. (Code Civ. Proc. § 1005 (b).) The moving party **must file** a proof of service confirming that the papers were served upon the other parties in the case. (Cal. R. Ct. 3.1300 (c) emphasis added.)

The Court notes that Plaintiff's motion does not include a notice of motion. There is no indication on Plaintiff's papers of the date, time, or location for the hearing. Additionally, Plaintiff has failed to file a proof of service confirming that the papers were properly served on Defendant.

"[M]ere self-representation is not a ground for exceptionally lenient treatment. Except when a particular rule provides otherwise, the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation." (*Rappleyea v. Campbell* (1994)



8 Cal.4th 975, 894-85.) “A doctrine generally requiring or permitting exceptional treatment of parties who represent themselves would lead to a quagmire in the trial courts, and would be unfair to the other parties to litigation.” (*Id.* at 895.)

As Defendant filed a substantive opposition to the motion, the Court will rule upon it. The Court, however, warns Plaintiff that he is required to follow the Rules of Court and Code provisions when formatting and filing his papers. This is especially true with respect to a proper notice of motion and filing a proof of service confirming that the papers have been properly served. The Court may refuse to hear motions that are not properly noticed.

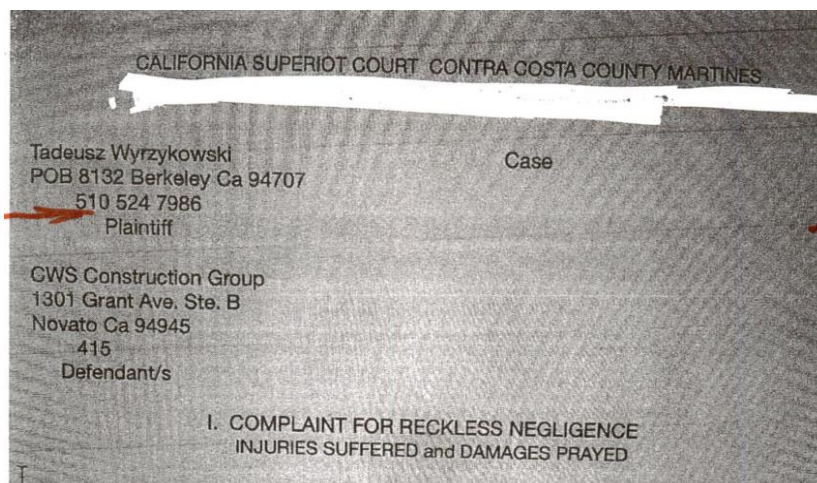
### **Analysis**

Initially, it is unclear upon what legal authority Plaintiff bases his motion to “sustain default.” Normally, a party that is impacted by a default will move (as Defendant did) to set aside a default. However, once a default is entered there is no need for a party to move to ‘sustain’ the default that has been entered. Instead, that party would oppose the motion to set aside – which Plaintiff did in this instance.

The Court has already ruled upon the motion to set aside, finding that the default was improperly granted as it was requested as to the original complaint – which was made a legal nullity upon the filing of the first amended complaint. (See April 30 Order.)

Instead, Plaintiff’s motion appears to be an attack upon Defendant’s request for an extension of time to file their demurrer which led to the allegedly untimely response to the Plaintiff’s complaint. Plaintiff appears to argue that defense counsel failed to properly meet and confer before seeking the extension of time and committed ‘fraud upon the Court’ by asserting that he could not properly meet and confer with Plaintiff because Plaintiff did not include a phone number in his Complaint and FAC. (Motion at 1:10-15.)

In support, Plaintiff attaches the second page from his complaint and the first page of his FAC. The second page of his complaint indicates (red line inserted by Plaintiff):



The first page of his FAC shows (highlight inserted by the Court):

|    |                                                         |                 |
|----|---------------------------------------------------------|-----------------|
| 1  | Tadeusz Wyrzykowski                                     |                 |
| 2  | POB 8132 Berkeley CA 94707                              |                 |
| 3  | Pro-Se                                                  |                 |
| 4  |                                                         |                 |
| 5  |                                                         |                 |
| 6  |                                                         |                 |
| 7  |                                                         |                 |
| 8  | CALIFORNIA SUPERIOR COURT CONTRA COSTA COUNTY, MARTINEZ |                 |
| 9  |                                                         |                 |
| 10 | Tadeusz Wyrzykowski                                     | Case: C 25 2730 |
| 11 | POB 8132 Berkeley Ca 94707                              |                 |
| 12 | 510 524 7986                                            |                 |
| 13 | Plaintiff Pro-Se                                        |                 |
| 14 | CWS Construction Group                                  |                 |
| 15 | 1301 Grant Ave. Ste. B                                  |                 |
| 16 | Novato Ca 94945                                         |                 |
| 17 | 415 209 0229                                            |                 |
| 18 | Defendant/s                                             |                 |

1st AMENDED  
COMPLAINT FOR RECKLESS NEGLIGENCE  
INJURIES SUFFERED and DAMAGES PRAYED

Plaintiff appears to argue that the above demonstrates that he did provide his phone number and defense counsel intentionally misrepresented to the Court that no such number was provided and therefore the declaration is 'fraudulent.' As such, the default is proper because of the allegedly improper declaration.

There are a few problems with Plaintiff's position. First, while the pleadings do appear to include Plaintiff's phone number it is not located in the proper position such that defense counsel should be expected to have found it. California Rules of Court, Rule 2.111 states, in pertinent part:

The first page of each paper must be in the following form:

(1) In the space commencing 1 inch from the top of the page with line 1, to the left of the center of the page, the name, office address or, if none, residence address or mailing address (if different), telephone number, fax number and e-mail address, and State Bar membership number of the attorney for the party in whose behalf the paper is presented, or of the party if he or she is appearing in person. The inclusion of a fax number or e-mail address on any document does not constitute consent to service by fax or e-mail unless otherwise provided by law.

In other words, the attorney/pro per party's contact information **must appear** in the top left corner of the papers. Here, the first page of Plaintiff's original complaint is as follows:

|    |                                                                              |                                                                                    |  |
|----|------------------------------------------------------------------------------|------------------------------------------------------------------------------------|--|
| 1  | Your Name: <u>Tadeusz Hryniewski</u>                                         |  |  |
| 2  | Your Address: <u>P.O. Box 8132</u>                                           |                                                                                    |  |
| 3  | <u>Berkeley CA 94707</u>                                                     |                                                                                    |  |
| 4  | Your Phone Number: <span style="background-color: yellow;">[REDACTED]</span> |                                                                                    |  |
| 5  | Self-Represented                                                             |                                                                                    |  |
| 6  |                                                                              |                                                                                    |  |
| 7  | SUPERIOR COURT OF CALIFORNIA                                                 |                                                                                    |  |
| 8  | COUNTY OF: <u>Contra Costa</u>                                               |                                                                                    |  |
| 9  | CIVIL DIVISION                                                               |                                                                                    |  |
| 10 |                                                                              | THIS CASE IS ASSIGNED<br>TO DEPT 39, FOR ALL<br>PURPOSES.                          |  |
| 11 | <u>Tadeusz Hryniewski</u>                                                    | Case No.: <u>25-02730</u>                                                          |  |
| 12 | Plaintiff,                                                                   | PLEADING TITLE:                                                                    |  |
| 13 | And                                                                          | <u>Complaint for Reckless</u>                                                      |  |
| 14 | <u>CNS Construction Group</u>                                                | <u>Negligence</u>                                                                  |  |
| 15 | Defendant                                                                    | <u>Injuries suffered - Damages Paid</u>                                            |  |
| 16 | <u>3101 Grant Ave 5-B</u>                                                    | Judge: <u>EDWARD WEIL</u>                                                          |  |
| 17 | <u>Newark, CA 94945</u>                                                      |                                                                                    |  |

The area for inputting a phone number is blank. The portion of the complaint inserted above and relied upon by Plaintiff is on the second page of the pleading. While the phone number is included, it is not located where it should be nor where an experienced litigator would expect to find it. Likewise, as the second insert above shows, regarding the FAC, the top left portion of the caption includes the Plaintiff's name and address – but no phone number. That information is instead jumbled together about halfway down the page in an area where the case name information should be. (Cal. R. Ct. 2.111 (4).)

There is no evidence or indication that defense counsel acted fraudulently when indicating that Plaintiff failed to provide his phone number. Plaintiff did fail to provide it in the location required by the Rules of Court. Counsel is not expected to scour all of Plaintiff's papers to find information secreted in some other area of the complaint other than where it is required to be.

Most importantly, the basis for the Court's earlier ruling setting aside the default is that the default was entered as to the wrong complaint. Plaintiff sought and was granted default as to the original complaint – even though Plaintiff had already filed the FAC. As the Court previously indicated:

“It is well established that an amendatory pleading supersedes the original one, which ceases to perform any function as a pleading.” (*Foreman & Clark Corp. v. Fallon*, (1971) 3 Cal.3d 875, 884, quoting *Meyer v. State Board of Equalization* (1954) 42 Cal.2d 376, 384.) “The original ceases to ‘perform any function as a pleading.’” (*Lee v. Bank of America* (1994) 27 Cal.App.4th 197, 215.) “The amended complaint furnishes the sole basis for the cause of action, and the original complaint ceases to have any effect either as a pleading **or as a basis for judgment.**” (*State Compensation Ins. Fund v. Superior Court* (2010) 184 Cal.App.4th 1124, 1131 emphasis added.)

As the original Complaint had no legal effect at the time the default was entered based upon it, given the filing of the FAC prior to the request for default, the default is void and cannot be enforced. As such, it must be set aside.

Thus, even if there were some issue with defense counsel failing to contact Plaintiff regarding the Defendant's demurrer – the default was still void and cannot be enforced.

### **Conclusion**

Plaintiff's motion to sustain default is **denied**.

**14. 9:00 AM CASE NUMBER: C25-02823**  
**CASE NAME: TAMARA ZABLOCKI VS. JEARALDIN ALTOBAR**  
**\*MOTION/PETITION TO COMPEL ARBITRATION**

**FILED BY: ALTOBAR, JEARALDIN**

**\*TENTATIVE RULING:\***

### **Introduction**

Defendants Banning Moragaidence Opco, LLC, Individually and Doing Business as Moraga Post Acute; Providence Group North, LLC; Providence Group Northern California, LLC; Providence Administrative Consulting Services, Inc.; PACS Holdings, LLC; PACS Group, Inc.; Providence Group, Inc.; 348 Rheem Boulevard, LLC; Jearaldin Altobar's (Defendants) Motion To Compel Arbitration and Stay of Action. The Motion relates to Plaintiffs TAMARA ZABLOCKI and JOSEPH JOHN ZABLOCKI, Individually, as Successor-in-Interest of JOSEPH PAUL ZABLOCKI's Complaint for (1) Elder Abuse/Neglect (Pursuant to Welfare and Institutions Code § 15600, et seq.); (2) Negligence/Willful Misconduct; (3) Premises Liability; (4) Violation of Resident's Rights (Pursuant to Health & Safety Code § 1430(b)); (5) Intentional Infliction of Emotional Distress; and (6) Wrongful Death filed on September 30, 2025.

Plaintiff argues that Mr. Zablocki's survival claims cannot be compelled because Defendants do not meet their burden to prove that Tamara had the authority to sign the Arbitration Agreement on Mr. Zablocki's behalf, arbitration of the wrongful death claim cannot be compelled because the heirs did not agree to arbitrate, and if the Court determines that only the survival claims or only the wrongful death claim must be arbitrated, then it should exercise its discretion under CCP section 1281.2(d)(1) to combine the wrongful death Court action and arbitration in one Court proceeding due to the substantial risk of conflicting rulings by the arbitrator and the Court on common issues of law or fact, or in the alternative stay arbitration of the survival claims and proceed on the wrongful death claims in court.

For the reasons articulated below, **Defendants' Motion to Compel Arbitration is granted in part and denied in part**. The Court **denies arbitration of the first cause of action for elder abuse, fourth cause of action for resident's rights, and the sixth cause of action for wrongful death**. The Court **compels arbitration of the remaining causes of action to arbitration pursuant to the Arbitration Agreement**. The Court orders this matter to be **stayed in full, pending conclusion of the arbitration**.

### **Procedural Background**

Plaintiffs filed their Complaint on September 30, 2025. Defendants filed their Motion to Compel Arbitration on January 07, 2026. At the Case Management Conference on January 26, 2026, Judge Benjamin T Reyes, II in Department 16 notified all Parties in attendance that the case was reassigned to Judge Julia Campins in Department 10 and that there was a pending Motion to Compel Arbitration

on calendar.

### **Factual Background**

The Complaint alleges as follows.

On September 27, 2024, Mr. Zablocki was admitted to Moraga Post Acute (the “Facility”), a skilled nursing facility in Moraga, CA. (Complaint ¶¶ 3, 43.) The Facility is jointly owned, operated, managed, administered, supervised, controlled, and directed by Defendants Moragaidence Opco, LLC, Jearaldin Altobar, Providence Group North, LLC, Providence Group Northern California, LLC, Providence Administrative Consulting Services, Inc., PACS Holdings, LLC, PACS Group, Inc., and Providence Group, Inc. (collectively, the “Defendants”). (Complaint ¶¶ 3-5.)

While at the Facility, Mr. Zablocki was unable to communicate his needs and relied on Defendants to provide him with adequate nutrition and hydration, monitor and report any sustained low blood pressure, and assess and maintain the cleanliness of his surgical wound. (Complaint ¶¶ 40, 59- 60, 66- 67, 73.) At all times, Facility staff knew that Mr. Zablocki was at high risk for developing malnutrition, inadequate blood flow, and infection. (Complaint ¶¶ 40-41, 66, 73-74, 88, 100, 114.)

Despite this knowledge, Facility staff provided Mr. Zablocki with only about 30% to 35% of his required nutrition and hydration. (Complaint ¶¶ 61-62.) Staff also failed to consistently monitor Mr. Zablocki’s blood pressure or contact his doctor about his consistently low blood pressure results. (Complaint ¶ 66.) And instead of protecting Mr. Zablocki’s surgical wound from infection, the Facility risked infection by housing him temporarily in a public area frequented by visitors and failed to assess and clean his surgical wound until he required hospitalization. (Complaint ¶¶ 63-65, 67, 69-72.) Even though Mr. Zablocki was losing weight, exhibiting inadequate blood flow, and suffering from a progressively infected and deteriorating surgical wound during his month of residency at the Facility, Facility staff never reported Mr. Zablocki’s declining health to his doctors despite explicit instructions to do so. (Complaint ¶¶ 60-61, 66, 69-70.)

On October 31, 2024, Mr. Zablocki was transferred to the hospital for his infected surgical wound where he was diagnosed with an MRSA infection. (Complaint ¶ 71.) He remained hospitalized for about a month but never recovered, and he died on December 9, 2024. (Complaint ¶ 72.)

### **Legal Standard for Motions to Compel Arbitration**

A motion to compel arbitration “is in essence a suit in equity to compel specific performance of a contract.” (*Cal. Teachers Ass’n v. Governing Bd.* (1984) 161 Cal.App.3d 393, 399, citation omitted.) “A party who files a motion to compel arbitration ‘bears the burden of proving the existence of a valid arbitration agreement by a preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense.” (*Alvarez v. Altamed Health Services Corp.* (2021) 60 Cal.App.5th 572, 580 quoting *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.) Whether or not the arbitration clause is governed by federal law, the threshold issue of whether a valid and enforceable agreement to arbitrate exists is determined under California law and procedures. (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413 (“Rosenthal”).)

## **Analysis**

### **Defendants' Initial Burden**

Here, Defendant provides a copy of the Arbitration Agreement. (Truong Decl. ¶ 4, Ex. C.) Plaintiffs do not dispute the existence of the Arbitration Agreement. As such, Defendants have met their initial burden to establish the existence of an Arbitration Agreement. Accordingly, the burden now shifts to Plaintiffs to present facts showing why it should not be enforced.

### **Plaintiff's Tamara Zablocki's Authority to Sign on Behalf of Decedent Joseph Paul Zablocki**

"When a defendant contends an agreement to arbitrate is binding because it was signed by an agent of the plaintiff, the defendant bears the burden of proving the signatory was the plaintiff's actual or ostensible agent." (*Kinder v. Capistrano Beach Care Ctr., LLC* (2023) 91 Cal. App. 5th 804, 812.) "Actual agency arises when the principal's conduct causes the agent reasonably to believe that the principal consents to the agent's act on behalf of the principal." (*Rogers v. Roseville SH, LLC* (2022) 75 Cal. App. 5th 1065, 1074.) "Ostensible agency," on the other hand "arises when the principal's conduct causes the third party reasonably to believe that the agent has the authority to act on the principal's behalf." *Id.* In both cases, "conduct by the principal is essential to create the agency." (*Flores v. Evergreen at San Diego, LLC* (2007) 148 Cal. App. 4th 581, 587-88.) Thus, "a defendant cannot meet its burden to prove the signatory acted as the agent of a plaintiff by relying on representations of the purported agent alone." (*Kinder*, 91 Cal. App. 5th at 812.)

In *Kinder*, the court held that the defendants did not meet their burden to show that the resident's adult children were the resident's agents where the defendants "presented no evidence that [the resident] did anything to lead [her children] to believe they had the actual authority to enter into arbitration agreements on her behalf" or "that [the resident] did anything to lead defendants to believe that [her children] had ostensible authority to do so." (*Id.* at 813.)

Plaintiffs argue that Defendants offer no evidence that Joseph Paul Zablocki did anything to cause Tamara or Defendants to believe that Tamara had authority to sign. (Opposition at p. 5: 20-27.)

In reply, Defendants submitted a Durable Power of Attorney signed by Joseph Paul Zablocki appointing Tamara Zablocki as his agent for a broad scope of power over all legal matters and exercise all powers with respect to legal actions that I could if present and under no disability or incapacity. (Truong Decl., Ex. F, at p. 7.) This express scope expressly includes but is not limited to submitting claims to arbitration. (*Id.*)

Defendants successfully showed that Plaintiff Tamara Zablocki had authority to sign the Arbitration Agreement as an agent of decedent Joseph Paul Zablocki.

### **Code of Civil Procedure Section 1296(a) and Ruiz Do Not Apply**

"As a general rule, plaintiffs cannot be compelled to arbitrate their disputes if they have not previously agreed to arbitration." (*Holland v. Silverscreen Healthcare, Inc.* (2025) 18 Cal.5th 364, 370.) If a patient agreed to arbitrate medical malpractice disputes in compliance with the arbitration provision of the Medical Injury Compensation Reform Act (MICRA) (codified as Code Civ. Proc., § 1295), the patient-provider agreement may bind the patient's heirs in a wrongful death action, even if

the heirs themselves never agreed to arbitration. (*Id*; citing *Ruiz v. Podolsky* (2010) 50 Cal.4th 838, 849-50.)

In the context of a skilled nursing facility, the operative question is whether such duties are owed by virtue of being a medical services provider or by virtue of being the custodian of a dependent adult. Claims premised on the manner in which skilled nursing or other long-term care facilities protect the basic welfare and safety of residents fall outside the scope of section 1295(a), and thus outside the scope of *Ruiz*. (*Holland v. Silverscreen Healthcare, Inc.* (2025) 18 Cal.5th 364, 381.)

Certainly, in some cases, a claim of injury from falls and infection might be based on negligence in prescribing or executing a plan to address a resident's medical needs. But in other cases, the claim of injury might be based on a failure to adequately supervise and render assistance to residents as they undertake daily activities, or the failure to ascertain whether residents need medical treatment despite easily observable physical manifestations of possible illness. While the first sort of claim may sound in professional negligence, the second sort of claim generally does not. (*Holland v. Silverscreen Healthcare, Inc.* (2025) 18 Cal.5th 364, 381-382.) Courts have squarely rejected the contention that whether an action is based on the professional negligence of a health care provider should "turn on the custodian's licensing status." (*Delaney v. Baker* (1999) 20 Cal.4th 23, 35.)

The Complaint alleges that Defendants neglected Mr. Zablocki by failing to meet his nutrition and hydration need, monitoring his blood pressure consistently, assessing and cleaning his surgical wound, compounded by their failure to report Mr. Zablocki's rapid weight loss, consistently low blood pressures, and steadily worsening wound condition to his doctors as instructed. (Complaint ¶¶ 61-67, 69-72.)

Defendants contend that Plaintiffs allegations are grounded in professional negligence and not custodial neglect. (Reply at p. 5: 6-8.) Defendants draw light to the fact that the Complaint had allegations against licensed healthcare professionals, which included but is not limited to inadequate staffing, supervision, withholding of dietary care and support, and withholding of wound care. (Reply at p. 5: 8-26.) All the allegations highlighted by the papers cut towards that the position that negligence claim is grounded in the basic welfare and safety of residents, which falls outside the scope of section 1295(a), and outside the scope of *Ruiz*.

#### **Elder Abuse and Resident's Rights Causes of Action Cannot Be Compelled**

Anyone may waive the advantage of a law intended solely for their benefit. But a law established for a public reason cannot be contravened by a private agreement. (Civ. Code, § 3513.)

Legislature's expression of public policy through their legislation makes clear that under no circumstances may a patient or resident waive his or her right to sue for violations of rights under the Patients Bill of Rights, or other federal and state laws and regulations, which would include the existing Elder Abuse and Dependent Adult Civil Protection Act. (*Fitzhugh v. Granada Healthcare & Rehabilitation Center, LLC* (2007) 150 Cal.App.4th 469, 476.) The First District Court of appeal reasoned that courts should rule, consistent with public policy expressed in the statutes enacted by the Legislature to protect a particularly vulnerable portion of the population from gross mistreatment in the form of abuse and custodial neglect, and to ensure appropriate relief for such mistreatment.

(Id.)

Thus, Plaintiff's first cause of action for elder abuse and fourth cause of action for resident's rights cannot be compelled to arbitration.

### **Wrongful Death Claims Cannot Be Compelled**

Since *Ruiz* does not apply here, *Fitzhugh* does.

In *Fitzhugh*, the court concluded that where one wrongful death heir signs only in his capacity as "legal representative/agent" of the resident, and the others do not sign at all, "there is no basis to infer that they waived their personal right to jury trial on the wrongful death claim." (*Fitzhugh v. Granada Healthcare & Rehab. Ctr., LLC* (2007) 150 Cal. App. 4th at 474.) *Fitzhugh* is on point because Joseph did not sign the Agreement, and Tamara only signed as the "Authorized Agent" of Mr. Zablocki. (Truong Decl. Ex. C at p. 4.)

Thus, Plaintiff's sixth cause of action for wrongful death cannot be compelled to arbitration.

### **Stay**

Under the FAA, courts must stay an action where "the issue involved in such suit or proceeding is referable to arbitration under an arbitration "agreement." (9 U.S.C § 3.) It is not clear, however, that this provision applies to proceedings in state court. (*Volt Information Sciences, Inc. v. Board of Trustees of Leland Stanford Junior University* (1989) 489 U.S. 468, 477, fn. 6 [noting the United States Supreme Court has not held this provision applies to state court proceedings]; *Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 410 [holding "section 4 of the USAA does not apply in California court" but not deciding whether section 3 applies].)

Independent of the CAA and FAA, courts have inherent authority to stay proceedings. (*Landis v. North American Co.* (1936) 299 U.S. 248, 254 ["the power to stay proceedings is incidental to the power inherent in every court to control the disposition of the causes on its docket with economy of time and effort for itself, for counsel, and for litigants"]; *Nederlandse Erts-Tankersmaatschappij, N.V. v. Isbrandtsen Co.* (2nd Cir. 1964) 339 F.2d 440, 441 [no authority under 9 U.S.C. § 3 to stay action, but stay permitted under district court's inherent power to control its docket]; *Freiberg v. City of Mission Viejo* (1995) 33 Cal.App.4th 1484, 1489 ["Trial courts generally have the inherent power to stay proceedings in the interests of justice and to promote judicial efficiency"].) Even assuming the CAA and FAA neither require nor authorize the court to stay the current claims, the Court would exercise its inherent authority to issue a stay.

The FAA applies here as it is expressly stated in the Agreement that the FAA applies and that the California Code of Civil Procedure does not govern. (Truong Decl. Ex. C at pp. 1-2.)

The arbitration agreements in this case are governed by the FAA. CCP § 1281.2 does not apply when the FAA's rules govern. (*Rodriguez v. Am. Techs., Inc.* (2006) 136 Cal.App.4th 1110, 1115-16.)

Under the Federal Arbitration Act, 9 U.S.C. section 1 et seq. (FAA), the court's only option in these circumstances is to stay the court proceeding and compel the arbitration." (*Rodriguez, supra*, 136 Cal.App.4th at 114-115.)



## **Conclusion**

For the reasons analyzed above, **Defendants' Motion to Compel Arbitration is granted in part and denied in part.** The Court **denies arbitration of the first cause of action for elder abuse, fourth cause of action for resident's rights, and the sixth cause of action for wrongful death.** The Court **compels arbitration of the remaining causes of action to arbitration pursuant to the Arbitration Agreement.** The Court orders this matter to be **stayed in full, pending conclusion of the arbitration.**

**15. 9:00 AM CASE NUMBER: C25-02961**  
**CASE NAME: SANDRA PONDS VS. BRUCE ALLS**  
**\*HEARING ON MOTION IN RE: TO VACATE SISTER STATE JUDGMENT**  
**FILED BY: ALLS, BRUCE**  
**\*TENTATIVE RULING:\***

Defendant Bruce Alls's motion to vacate the sister state judgment is **granted.**

Sanda Ponds obtained a judgment against Bruce Alls for \$53,532.57 in Georgia on July 19, 2023. Ponds assigned her judgment to G.R. Isidro on June 4, 2025. Isidro filed an application for entry of judgment on a sister state judgment on October 10, 2025. This Court entered judgment against Alls on October 10, 2025. The notice of entry of judgment was served on Alls by mail on October 28, 2025.

Alls filed this motion to vacate the judgment on November 13, 2025. Alls's motion is based upon Code of Civil Procedure section 1710.40 and the fact that Alls had notified the Georgia court of his current address, but the court mailed hearing notices to an incorrect address.

The records provided by Alls show that he filed a response in *Ponds v. Alls* (in Georgia) on January 3, 2023. In this response he listed his address as being in Conyers, GA. The judgement states that Ponds appeared for the bench trial on July 18, 2023, and Alls did not appear. The judgment was sent to Alls at an address in Loganville, GA.

Isidro provided additional documents from the Georgia case that a summons was issued to Alls at the Loganville property and Alls's was served by delivering a copy to Alls's sister at the Loganville property on December 16, 2022. (Opposition ex. A and B.) Isidro provided a declaration stating that he has personal knowledge of the documents filed in the Georgia case. Although it is not clear how Isidro has personal knowledge of these documents, these documents appeared to have been filed in the Georgia case and there is no claim that they are false. Thus, the Court may take judicial notice of the summons and proof of service filed in the case. The Court also takes judicial notice of Alls's response and the judgment filed in the Georgia case.

Alls argues that the Georgia judgment was entered without proper notice or jurisdiction. He then argues that the Georgia court mailed hearing notices to an incorrect address, despite having the correct address on file.

A motion to vacate a sister state judgment must be filed within 30 days of notice of entry of the

order. Alls's motion was filed within this time limit.

Code of Civil Procedure section 1710.40 provides that "A judgment entered pursuant to this chapter may be vacated on any ground which would be a defense to an action in this state on the sister state judgment, including the ground that the amount of interest accrued on the sister state judgment and included in the judgment entered pursuant to this chapter is incorrect." (Code of Civil Procedure section 1710.40(a).)

The Law Revision Comments for section 1710.40 note that "common defenses to enforcement of a sister state judgment include the following: the judgment is not final and unconditional (where finality means that no further action by the court rendering the judgment is necessary to resolve the matter litigated); the judgment was obtained by extrinsic fraud; the judgment was rendered in excess of jurisdiction; the judgment is not enforceable in the state of rendition; the plaintiff is guilty of misconduct; the judgment has already been paid; suit on the judgment is barred by the statute of limitations in the state where enforcement is sought. See 5 B. Witkin, *California Procedure Enforcement of Judgment* §§ 194–195 at 3549–3550 (2d ed. 1971); Restatement (Second) of Conflict of Laws §§ 103–121 (1971)."

A violation of due process can be used as a ground to vacate a sister state judgment. "Due process requires that notice be 'reasonably calculated, under all the circumstances, to apprise interested parties of the pendency of the action and afford them an opportunity to present their objections.' [Citations.] Further, '[t]he fundamental requirement of due process is the opportunity to be heard 'at a meaningful time and in a meaningful manner.'" [Citation.]" (*State of Arizona ex rel. Arizona Dept. of Revenue v. Yuen* (2009) 179 Cal.App.4th 169, 179; see also, *Commercial Nat. Bank of Peoria v. Kermeen* (1990) 225 Cal.App.3d 396; see also, *In re Marriage of Lippel* (1990) 51 Cal.3d 1160, 1166 [due process requires notice and an opportunity to defend].)

Here, Alls claims he was not given notice of the trial date and thus, trial occurred without him. This is similar to when a plaintiff obtains a default judgment. In California, when a plaintiff requests a default judgment, they must serve the request for entry of default on the defendant at their last known address. (Code of Civil Procedure section 587.) There is a due process issue when the request for entry of default is not properly served on the defendant, however, such an issue can be rebutted by showing defendant had actual notice of plaintiff's intent to enter default. (*Murray & Murray v. Raissi Real Estate Development, LLC* (2015) 233 Cal.App.4th 379, 383, 386.) Similarly, dismissing a plaintiff's complaint without notice and an opportunity to be heard is a violation of due process. (*Reid v. Balter* (1993) 14 Cal.App.4th 1186, 1193.)

In opposition (and the supplemental opposition), Isidro argues that Alls was required to update the court in Georgia regarding his change of address. *Tyliczka v. Chance* (2012) 313 Ga.App. 787 affirmed the dismissal of a case because plaintiff's lawyer did not attend a calendar call. The lawyer argued that she missed the court's notice. The law firm filed the case using their current address, but then moved and failed to request an address change with the court (although their later correspondence had a new address). The Court noted that "[e]ven when mail is to be forwarded, however, we note that a lawyer representing a party has a duty to 'notify the calendar clerk . . . immediately upon any change of . . .

address.’ Uniform Superior Court Rule 4.6.” (*Tyliczka v. Chance* (2012) 313 Ga.App. 787, 787, fn.1.) Although Isidro adds language indicating that Rule 4.6 applies to parties, the Rule 4.6 is specific to attorneys and it does not state that it applies to self-represented parties.

Service of pleadings after the original complaint is made “by delivering a copy to the person to be served or by mailing it to the person to be served at the person’s last known address...” (Ga. Code Ann. § 9-11-5.) In *Syed v. Merchant’s Square Office Bldgs., LLC* (2020) 354 Ga.App. 365 the court mailed notices to plaintiff’s law firm, but despite using the correct address, the law firm did not receive the notices and the case was dismissed. The court upheld the trial court’s denial of a motion to set aside the dismissal. The court decision was not based on the losing party’s knowledge, but on whether the trial court had properly discharged its duty of mailing the notice to the correct address. (*Id.* at 367.) In *Saxton v. Davis* (2003) 262 Ga.App. 72, 73 (overruled on another issue in *Ragan v. Mallow* (2012) 319 Ga.App. 443, 447), the court noted that due process was met when the papers were mailed to the opposing party’s last known address.

California has mailing requirements similar to those in Georgia. Although electronic service is often used (and required in many cases), when serving by mail, parties are to send documents to “the office address as last given by that person on any document filed in the cause and served on the party making service by mail; otherwise at that party’s place of residence.” (Code of Civil Procedure section 1013.) Parties are also required to provide notice when they change their address, or other contact information. (California Rules of Court, rule 2.200.)

The fundamental flaw with Isidro’s argument is that when Alls first appeared in the Georgia case he provided the court with his current (and thus last known) address in Conyers. The court apparently failed to input the correct address for Alls and thus, mailed documents to Alls at an *incorrect* address. This is not a situation where a party gave the court an address and then changed addresses during the pendency of the litigation. Nor is Alls arguing that the notice was sent to the correct address, but he did not receive it. Rather, the facts show that Alls gave the court his correct address at the first opportunity (his answer) and the court failed to use that address.

Here, the documents provided to the Court show that Ponds listed a Loganville address for Alls, which the Georgia court appeared to use throughout the case. Alls provided a different address in Conyers when he filed is response to Ponds’ complaint. Although neither side provides a copy of the notice setting the trial date, the documents available create a presumption that Ponds and the Georgia court were using an incorrect address for Alls, even though he provided the correct address. The Court finds that there was a violation of due process when the Georgia court held trial and then entered judgment without having provided sufficient notice to Alls of the trial date. Having found a violation of due process, the Court **grants** Alls’s motion to vacate the sister state judgment.

**16. 9:00 AM CASE NUMBER: MSC19-01228**

**CASE NAME: KENZIE CONSULTING VS CUNNINGHAM**

**\*HEARING ON MOTION IN RE: SET ASIDE JUDGMENT ENTERED AGAINST DEFENDANTS**

**FILED BY: CUNNINGHAM, HART PEARSON**

**\*TENTATIVE RULING:\***

This hearing has been continued to June 11, 2026.

**17. 9:00 AM CASE NUMBER: MSC22-00088**

**CASE NAME: KALAMAS VS. JOHN MUIR HEALTH**

**\*HEARING ON MOTION IN RE: FOR SANCTIONS**

**FILED BY: KALAMAS, ALICIA**

**\*TENTATIVE RULING:\***

Plaintiff Alicia Kalamas moves for sanctions on the basis of purported misrepresentations by Defendant John Muir Health's (JMH) counsel in the Motion for Attorneys' Fees.

The Court is struggling to parse all of the alleged misrepresentations. To the best of its abilities, the Court believes the following are disputed: (1) that Plaintiff was "sanctioned" \$500,000 during the litigation; (2) that Plaintiff contradicted herself in stating the case was "not about the money" "despite asking for millions of dollars"; and (3) the motion was frivolous. On reply, Plaintiff focuses only on the last of these three issues.

It appears that Defendant was imprecise with its language regarding the "sanction." Plaintiff *was* ordered to pay fees relating to an Anti-SLAPP dismissal, *and* the judicial referee found that Plaintiff had engaged in misbehavior, but those two issues were separate. Counsel should be careful when using strong words, but this language does not rise to the level of sanctionable conduct under Code of Civil Procedure sections 128.5 and 128.7.

Although the Court does understand how a whistleblower plaintiff can seek extensive damages but also seek changes—and be willing to trade one for the other—that does not make Defendant's misunderstanding of such motivations frivolous or in bad faith.

Finally, the Court will at this point decline to find the attorneys' fees motion frivolous. The Court of Appeal is reviewing that order, and if, after appellate review, it appears that the motion was baseless, the Court may revisit it. This is not intended to encourage further motion practice in this case, but merely to note that such a determination is premature.

For these reasons, the Motion is **denied**.

#### **Discovery Law & Motion**

**18. 9:01 AM CASE NUMBER: C25-00992**

**CASE NAME: STEVEN NEIL VS. FORD MOTOR COMPANY**

**\*HEARING ON MOTION FOR DISCOVERY TO COMPEL FURTHER RESPONSES TO PLAINTIFFS  
REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE**

**FILED BY: NEIL, STEVEN D.**

**\*TENTATIVE RULING:\***

Plaintiff brings this Motion to Compel Further Responses to Requests for Production of Documents, Set One. Defendant Ford Motor Company opposes, primarily on procedural grounds, although additionally on some substantive grounds.

Neil served discovery on December 10, 2025. Ford Motor Company responded on January 9, 2026 with objections—many of which were boilerplate.<sup>1</sup> Ford also objected that the discovery was premature, as Neil been on telephonic availability at the mediation, and Ford believed that did not satisfy Code of Civil Procedure section 871.26. On January 16, 2026, Neil sent a letter outlining the reasons he believed Ford’s responses were unsatisfactory and improper. Ford responded on January 23, 2026, indicating that the objections were proper, but also stating that because Neil had not attended the mediation, the case was not ripe for discovery, per the Code. Without further discussion, Neil filed this Motion on March 2, 2026.

#### CCP 871.26

Neil argues that he complied with Code of Civil Procedure section 871.26(d)(2) because he was available by telephone. That section requires “The plaintiff and a person with settlement authority for the manufacturer shall attend the mediation in person or by remote means.” Attending mediation is more than just being on telephone standby. Mediation consists of more than receiving a settlement offer and responding to it; mediation is a facilitated conversation about a case with a neutral. If all that was required was telephonic availability, then the statute would require only settlement discussions rather than an actual mediation. Moreover, it is not as if Mr. Neil was on and off the telephone. The mediator stated that he *did not participate*. Plaintiff has failed to comply with the statute and therefore the mediation has not concluded and section 871.26(e) has not been triggered.<sup>2</sup>

#### Meet and Confer

Although the Court need not go any further, we will pause briefly to note that the meet and confer process was also incomplete. Again, the legislature does not require meeting and conferring so that parties can spend time and postage (or internet bandwidth) merely sending a missive in each direction without actually communicating. The legislature requires meeting and conferring so that the parties do not waste their own time and resources and that of the courts in bringing unripe motions or motions that could be resolved by a meeting of the minds. While the Discovery Act does not explicitly require verbal communications, it is rarely a bad idea for attorneys to pick up the phone or the equivalent and speak about the issues. Once discovery is triggered by the completion of mediation, there is some considerable conversation that these parties need to have about what is reasonable, necessary, and appropriate. Plaintiff cannot serve massively overbroad demands in the hopes that there is a needle in a haystack; nor can Defendant pretend that a discovery request that overlaps with privileged and confidential information is therefore unanswerable with non-privileged

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<sup>1</sup> Plaintiff’s Declaration of Gabriel McIntire in support of this Motion attached the Form Interrogatories and responses, not the Requests for Production of Documents, so the Court is referencing the Separate Statement.

<sup>2</sup> It is of no moment that Ford has not responded to Neil’s demand. Ford also indicates Neil has not responded to its offer. This discussion would have been facilitated *by a mediation*; moreover, as stated above, it is not a settlement discussion that the legislature has required but rather a mediation attended by individuals with knowledge and authority.

and non-confidential information. Parties must endeavor to define words reasonably, and respond with reasonable definitions of there is vagueness.

Conclusion

Because, pursuant to Code of Civil Procedure section 871.26, this case has not yet mediated properly, Plaintiff's Motion is **denied**.<sup>3</sup>

**19. 9:01 AM CASE NUMBER: C25-00992**

**CASE NAME: STEVEN NEIL VS. FORD MOTOR COMPANY**

**\*HEARING ON MOTION FOR DISCOVERY TO COMPEL DEFENDANTS FURTHER RESPONSES TO PLAINTIFFS FORM INTERROGATORIES, SET ONE**

**FILED BY: NEIL, STEVEN D.**

**\*TENTATIVE RULING:\***

Plaintiff Steven Neil brings this Motion to Compel Further Responses to Form Interrogatories, Set One. Defendant Ford Motor Company opposes, primarily on procedural grounds, although additionally on some substantive grounds.

Neil served discovery on \_\_\_\_\_. Ford Motor Company responded on \_\_\_, primarily with objections—many of which were boilerplate. Ford also objected that the discovery was premature, as Neil been on telephonic availability at the mediation, and Ford believed that did not satisfy Code of Civil Procedure section 871.26. On January 16, 2026, Neil sent a letter outlining the reasons he believed Ford's responses were unsatisfactory and improper. Ford responded on January 23, 2026, indicating that the objections were proper, but also stating that because Neil had not attended the mediation, the case was not ripe for discovery, per the Code. Without further discussion, Neil filed this Motion on March 2, 2026.

CCP 871.26

Neil argues that he complied with Code of Civil Procedure section 871.26(d)(2) because he was available by telephone. That section requires "The plaintiff and a person with settlement authority for the manufacturer shall attend the mediation in person or by remote means." Attending mediation is more than just being on telephone standby. Mediation consists of more than receiving a settlement offer and responding to it; mediation is a facilitated conversation about a case with a neutral. If all that was required was telephonic availability, then the statute would require only settlement discussions rather than an actual mediation. Moreover, it is not as if Mr. Neil was on and off the telephone. The mediator stated that he *did not participate*. Plaintiff has failed to comply with the statute and therefore the mediation has not concluded and section 871.26(e) has not been triggered.<sup>4</sup>

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<sup>3</sup> The Court adds one more observation, which is that Ford cited two superior court cases in its opposition. One is explicitly unpublished. The other does not state, but it is not in a reporter. California Rule of Court 8.1115 prohibits citation of unpublished cases, and the Court will admonish counsel not to repeat this error.

<sup>4</sup> It is of no moment that Ford has not responded to Neil's demand. Ford also indicates Neil has not responded to its offer. This discussion would have been facilitated *by a mediation*; moreover, as stated above, it is not a settlement discussion that the legislature has required but rather a mediation attended by individuals with knowledge and authority.

### Meet and Confer

Although the Court need not go any further, we will pause briefly to note that the meet and confer process was also incomplete. Again, the legislature does not require meeting and conferring so that parties can spend time and postage (or internet bandwidth) merely sending a missive in each direction without actually communicating. The legislature requires meeting and conferring so that the parties do not waste their own time and resources and that of the courts in bringing unripe motions or motions that could be resolved by a meeting of the minds. While the Discovery Act does not explicitly require verbal communications, it is rarely a bad idea for attorneys to pick up the phone or the equivalent and speak about the issues. Once discovery is triggered by the completion of mediation, there is some considerable conversation that these parties need to have about what is reasonable, necessary, and appropriate. Plaintiff cannot serve massively overbroad demands in the hopes that there is a needle in a haystack; nor can Defendant pretend that a discovery request that overlaps with privileged and confidential information is therefore unanswerable with non-privileged and non-confidential information. Parties must endeavor to define words reasonably, and respond with reasonable definitions of there is vagueness.

### Conclusion

Because, pursuant to Code of Civil Procedure section 871.26, this case has not yet mediated properly, Plaintiff's Motion is **denied**.

**Law & Motion**

**Add On**

**20. 9:00 AM CASE NUMBER: C23-02528**

**CASE NAME: FLUENCE ENERGY, LLC VS. DIABLO ENERGY STORAGE, LLC**

**\*HEARING ON MOTION FOR DISCOVERY COMPEL DEPOSITION ATTENDANCE OF DEFENDANT'S PERSON(S) MOST QUALIFIED**

**FILED BY: FLUENCE ENERGY, LLC**

**\*TENTATIVE RULING:\***

Plaintiff Fluence Energy LLC brings this Motion to Compel Deposition Attendance of Defendant's Person(s) Most Qualified and to Produce Documents; Request for Sanctions against Defendant Diablo Energy Storage LLC. Due to a court calendaring error, the Court has had to prepare for this motion on an expedited basis, so this tentative ruling will be more summary than it otherwise may have been. (The Court has been able to review all materials on an expedited basis.)

Fluence served a deposition notice for Diablo's Person Most Qualified with 29 topics. At this time, there appear to be 16 topics at dispute. The areas are topic numbers 1, 4, 5, 6, 7, 11, 14, 16 (except for activities with related to the preparation of the Emergency Response Plan in support of Fluence's submissions to the Fire Department), 17, 18, 19, 20, 22, 23, 28, and 29.

Attached to the deposition notice was a request for production of documents related to the Notice. The parties agree that this request was *otherwise* beyond the period of time set by the Court's scheduling order for written discovery. Request No. 1 was for documents generated or reviewed or relied upon when responding to the topics in the deposition notice. Request No. 3 was for documents related to delay claims made to Diablo on battery storage projects for the same reasons and during the same time period as the delays for this Project. Diablo proposed that the first request could be satisfied by the deponents bringing the documents they reviewed to the depositions. Fluence rejected this proposal. The additional requests were beyond the court's then-effective discovery order.

Diablo did not produce witnesses and did not file a Motion to Quash. Diablo did, however, assert timely objections.

For the vast majority of the disputed topics, Diablo asserts that the requests cover areas that are not relevant. For many, they also assert that, in other depositions, Fluence could have explored these areas but declined to do so. That argument ignores that the resulting questions would have been beyond the scope of the deposition for which that individual was testifying. Fluence's failure to explore PMQ areas in individual depositions or explore a topic not agreed-to in a deposition of a PMQ for a different topic does not foreclose their ability to take those depositions at this time.

After a review of the parties' arguments the Court orders as follows:

Topic 5 – Diablo must produce a responsive witness

Topic 6 – Diablo must produce a witness to testify as to facts that form the basis of Diablo's battery availability liquidated damage claims

Topic 14 – this request is denied

Topic 16 – Diablo must produce a witness to testify as to Diablo's responsibilities or obligations relating to permitting under the parties' contract

Topics 17-20 – Diablo must produce a responsive witness. If Diablo will not be pursuing previously pled claims, theories, or defenses, it must so state either by amending pleadings or in verified discovery responses—thereby foreclosing such theories at trial. Finally, while some of the other documents may be slightly more tangential, they are within the permissible scope of discovery.

Topics 22 & 23 – Diablo must produce a responsive witness. If no such evaluations occurred (Topic 22), then Diablo must so state and thereby avoid producing a witness.

As explained above, Fluence's Motion is **granted in part and denied in part**. The request for sanctions is denied.

**21. 9:00 AM CASE NUMBER: C23-02528**

**CASE NAME: FLUENCE ENERGY, LLC VS. DIABLO ENERGY STORAGE, LLC**

**\*HEARING ON MOTION FOR DISCOVERY COMPEL PRODUCTION OF DOCUMENTS IN COMPLIANCE WITH DISCOVERY RESPONSES BY A DATE CERTAIN**



**FILED BY: FLUENCE ENERGY, LLC**

**\*TENTATIVE RULING:\***

Plaintiff Fluence Energy LLC brings this Motion to Compel Production of Documents in Compliance with Discovery Responses by a Date Certain and for Sanctions against Defendant Diablo Energy Storage LLC. Due to a court calendaring error, the Court has had to prepare for this motion on an expedited basis, so this tentative ruling will be more summary than it otherwise may have been. (The Court has been able to review all materials on an expedited basis.)

This Motion seeks additional responses to Request Nos. 35, 39, and 42. Diablo has claimed that further documents are not relevant, that they were already produced, that Diablo does not have these documents, or that they are unduly burdensome to produce.

To the extent relevant responsive documents were already produced, Diablo is obligated to identify those documents. That a request is answered in part by documents already produced does not relieve Diablo of the obligation of producing additional relevant documents.

To the extent that Diablo does not have responsive documents in its possession, custody, or control, it must so state.

The Court agrees that Diablo's claim of late-breaking burden are unavailing, both because the trial has been continued until July 2026 and because this discovery dispute has been going on for years. Diablo must comply with its discovery obligations.

Diablo also argues that the documents Fluence seeks are not relevant either because they relate to claims Diablo has disavowed in recent correspondence or because they go beyond the claims and defenses of the parties. If Diablo will not be pursuing previously pled claims, theories, or defenses, it must so state either by amending pleadings or in verified discovery responses—thereby foreclosing such theories at trial. Finally, while some of the other documents may be slightly more tangential, they are within the permissible scope of discovery.

For the foregoing reasons, Fluence's Motion to Compel is **granted**. The Court declines to impose sanctions.

**Courtroom Clerk's Calendar**  
**Add On**

**22. 9:00 AM CASE NUMBER: MSC22-00088**  
**CASE NAME: KALAMAS VS. JOHN MUIR HEALTH**  
**\*HEARING ON MOTION IN RE: COSTS RECOMPUTATION**  
**FILED BY:**

**\*TENTATIVE RULING:\***

After the Court ruled on Plaintiff Alicia Kalamas's Motion to Tax Costs, Defendant John Muir Health (JMH) was granted permission to supplement their request, consistent with the Court's rulings. Four issues remain to be addressed: (1) court reporter fees; (2) non-testimony time of expert witness Ryan Larkin; (3) e-discovery costs; and (4) costs of prior counsel Barkto.

Court reporter fees

In response to the Court's order, JMH removed \$1,608 as not allowable. A total amount of \$57,566.42 remains. JMH clarifies that the remainder represents: the fee for the original and one certified copy of the transcript; the Arbitration Per Diem fee; the Reporter's Certificate fee; the In-Person Per Diem fee; and the Waiting Time fee; the Electronic Package fee; the Processing fee; the Email fee; the Shipping fee; and the Delivery of Original fee; one additional certified copy of the transcripts as requested by the parties. Karmand Supp Dec ¶ 2, Ex. I. JMH misunderstands the Court's order and the law. The costs that are recoverable for transcripts are not all possible transcripts, but merely those ordered by the Court.

Code of Civil Procedure section 1033.5 permits "court reporter fees as allowed by statute." Government Code section 68086 specifies certain fees, and then the "actual cost" of providing the services of a court reporter. California Rule of Court 2.958 gives further clarification as to the fee. Several of the fees JMH has conveyed go beyond this actual fee. The Court grants the Motion to tax all but the per-diem fees and the transcript actually conveyed to the Judicial Referee. Plaintiff calculates the total remaining as \$14,920. The Court expects that, if this number does not reflect the accurate number consistent with the order, the parties will work together to figure out the proper number.

Non-Testimony Time of Expert Witness Ryan Larkin<sup>5</sup>

JMH has submitted a declaration from Ryan Larkin confirming that his non-testimony time of \$8,830.25 was for work performed after JMH's section 998 offer on July 10, 2024. See Decl. of Ryan Larkin ("Larkin Decl."), ¶¶ 4-5. Plaintiff reiterates that Mr. Larkin's time was not necessary and that the Court should use its discretion to deny this request. As Plaintiff has presented concrete objections to Mr. Larkin's time, the burden has shifted to JMH to support it. (*Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1266 ("If items on their face appear to be proper charges, the verified memorandum of costs is prima facie evidence of their propriety, and the burden is on the party seeking to tax costs to show they were not reasonable or necessary. 'On the other hand, if items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs.'") (*Ladas v. California State Auto. Assn.* (1993) 19 Cal. App. 4th 761, 774).") JMH has never responded to this argument, and so the Court cannot find that JMH has carried its burden. These additional costs of Expert Larkin are stricken.

E-Discovery Vendor

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<sup>5</sup> The Court acknowledges its language with respect to Dr. Alan Rosenstein could have been more precise. The Motion to Tax Costs is denied as to that expert—except insofar as Plaintiff is correct that the invoices only support \$14,150 rather than \$18,650.

Now that the Court has the Judicial Referee's order, it is evident that the order clarifies nothing. It appears to the Court that the Judicial Referee was discussing how costs of electronic discovery would be apportioned during the litigation, which is irrelevant to the issue of taxation of costs here. The dispute remains, however, as to whether these costs are recoverable under the statute. As before, the conversation focuses on the same two cases: *Science Applications Internat. Corp. v. Sup. Ct.*, 39 Cal.App.4th 1095 (1995) and *Hooked Media Group, Inc. v. Apple Inc.* (2020) 55 Cal.App.5th 323, 354.

An extensive quotation from *Science Applications* is of some assistance to the Court:

The document control and database charge, for example, represents the State's expenditure for an outside firm to keep track of the voluminous records in the case-- that is, to "Bates-stamp" the documents, input them for retrieval, maintain a document library, create databases to search for records by date, author or subject, etc. The expense is the cost of hiring assistants to help counsel organize documents and access them in discovery and at trial--in other words, the cost of a "high tech" paralegal. Because we have concluded attorney fees are not compensable, we cannot condone payment of paralegal fees. The item is not recoverable.

(*Science Applications, supra*, 39 Cal.App.4th at 1104.) *Science Applications* is obviously an outdated 30-year-old analysis, but the crux of that case and the limited discussion in *Hooked Media* is that while parties may opt to use the state-of-the-art technology and expend great resources in managing documents, the ability of a prevailing party to *shift* those costs is far more limited. Here, JMH has simply failed to explain why such extensive cost outlays were necessary in a single-plaintiff case. Even with extensive email production, it is hard to fathom why over \$1 million in e-discovery costs could be justified. Project managers on a database are more of the type of cost rejected in *Science Applications* than those accepted (such as preparing a demonstrative for trial). The Court **grants** the motion to tax all the costs other than those necessary to convert the files for production. Again Plaintiff calculates that amount as \$723.81 and the Court expects the parties to be able to adjust this number if there has been a calculation error.

#### Barkto LLP Costs

JMH adjusted the costs to remove \$5,602.80 relating to travel. Serious issues, however, remain. The Court agrees that the costs appear to be in triplicate—based on a look at the dates. Additionally, there are Westlaw and PACER fees, which are not allowable pursuant to section 1033.5(b)(2) and FedEx costs, which are not allowable pursuant to section 1033.5(b)(3). At bottom, these errors all point to the lack of any proper declaration in support of the costs. Given that such a declaration would likely have resolved these problems, and that there has been no proper attestation to the Court regarding these costs, they will be stricken.

#### Conclusion

On the basis of the representations of the parties, the following are the allowable costs remaining:

- (1) Deposition Costs – \$5,947
- (2) Ordinary Witness Fees – \$280

(3) Expert Fees (excluding Larkin non-testifying time) – \$25,650

(4) Electronic Filing Fees – \$172.05

(5) Court Reporter Fees – \$14,920

(6) Electronic Discovery-Related Third-Party Vendor Costs – \$723.81

The total allowable costs are therefore \$47,692.86.